

the exception above mentioned, to have power to appoint a Guardian of the person. Such a jurisdiction has been exercised by this Court, it is true, prior to the Act of 12th Vic. Ch. 64; but it was only in *Exparte Cases*, and an application of the kind would, it is believed, now meet with a refusal; for the Court would feel bound by the expressed exception, however convenient and useful to all parties the exercise of the jurisdiction might be.

An important jurisdiction is given to the Court in the case of Infants by the Act of 12th Vic. Ch. 72, dated 30th May 1849. The first Section enacts, "That any Infant seized or possessed of, or entitled to any Real Estate *in fee*, for a term of years, or otherwise howsoever, in Upper Canada, may by his or her *next friend*, or by his or her *Guardian*, apply to the Court of Chancery in and for Upper Canada for the sale or *other disposition* of such property, or a competent part thereof, in manner and for any of the purposes hereinafter directed." The "purposes" are, the support, maintenance and education of the Infant; and the Court must be satisfied that the advantage of the Infant is consulted. If over seven years of age, the Infant must be a consenting party. The disposition of the proceeds is controlled by the Court and see 2 W. 4, ch. 35, sec. 9, as to partition of Infant's Estates. *Lunacy Cases.*

The practice in Lunacy Cases is regulated by 9th Vic. Ch. 10, dated May 18th, 1846.

The jurisdiction in respect to the Repeal of Letters Patent is extended by the 29th Section of 4 and 5 Victoria, (1842), Chap. 100, which enacts "That it shall and may be lawful for the Court of Chancery in that part of this Province formerly called Upper Canada, and for the Court of King's Bench in that part of this Province formerly called Lower Canada, upon Action, Bill or Plaint, to be exhibited in either of the said Courts, respecting grants of Land situate in the said Parts of this Province respectively, and upon hearing of the parties interested, or upon default of the said parties, after such notice of proceedings as the said Court shall respectively order, in *all cases* wherein Patents for Lands *have* or

Partition of the
Estates of In-
fants under 12,
Vic. Ch. 72.

Repeal of
Patents.